

Dear Ms Jane Abbott,

Thank you for your response and thank you for the time it has taken to address my case and your hard work.

You said I could contact you by email so i am doing so but I hope to talk to you on this Wednesday.

I refer to the exit periodic statement from Health Super dated 29 Feb, 2008 which details my TPD payout. (Attached for your reference).

It is an account statement from 19/12/2007 to 28/02/2008. This equals 10.2275 weeks.

In it, it states I am receiving a cheque for \$72,810.47.

The statement is of at 28/02/08.

According to this statement, from 19/12/07 to 28/02/2008 (which is 10,2275 weeks), I definitively paid the following:

- Account keeping fee of \$14.83 @ \$1.45 per week, (Equalling 10.2275 weeks),
- Permanent disablement cover of \$21.07 which divided by 10.2275 equals \$2.06013 per week.

What then, is the number of TPD units I paid proportionate to \$2.06013 equal to in dollar amount?

Surely if 1 x unit of cover = (x (\$83,100)) then I have paid \$21.07 divided by the number of weeks (10.2275) therefore the insurance i paid and entitled to equals 2.0601 units of cover.

If 1 x unit is \$1 a week, which I think it was as per their documentation, then:

That equals \$171,196.97, yet that is not the amount I was paid.

It has come to my attention that at a point in time, 2 x units of TPD cover was automatically applied to members at Health Super as per new legislation.

I worked or was on the books at North West Area Mental health Service until 07/09/2007. Please refer to the evidence I sent earlier.

I was paying my deductions until at least this time of 07/09/2007, of \$2.06013 per week for permanent disability cover, which was approximately 2 or more units of cover.

I want to make sure I received the correct proportionate amount of TPD insurance that I actually paid for to the date I was taken off the books.

This is in light of the legislation that 2 x units of cover were automatically applied at

health Super for employees, BEFORE I finished my job at NWAMHS.

Health Super and Mr Callister have responded saying 'it was an error' that amount of \$21.07 was charged, and offered to refund me a minuscule amount of \$20-\$30 or something...

I think this is outrageous and they are trying not to pay me what I was entitled for!

According to my understanding, 1 x unit of TPD cover = \$83,100, at that time in 2007. (?)

So how many units on that scale is \$2.06013 per week that I paid up until 07/09/2007 when I officially left work and was paying my fees?

That is the amount I should have been paid, and this is what I mainly dispute.

If the new corrected figure is more and the TPD payout I received was incorrect, the difference needs to be paid to me additionally adjusted for compound interest back until 2007.

Is this correct?

Additionally, on that same formula, I paid \$12.68 on income protection.

\$12.68 divided by 10.2275 weeks is = \$1.2397 per week.

Is the income protection null and void because i received a TPD payout and did I receive the income protection I was insured for as per this statement? (I can't remember).

I refer to your question to Health Super whether they put the amount in the most optimal account for preserving my amount, I had not thought of this before and I think you raise a very valid question!

Was there somewhere it could have been put to put my balance as positive growth or was it deliberately put somewhere to reduce my payout amount?

So the payout was put into a 'holding' account of 'long term' growth.

In the three months that this statement covers, the growth amounts were in the negative as follows:

- December Long-Term Growth was -0.32%
- January Long-Term Growth was -5.60%
- February Long-Term Growth was -5.24%

Why was \$83,100 put into an 'investment choice' that resulted in me losing minus \$8,657.95?

Was there a better place to put my TPD claim so it was not reduced so much or even

in a place where it may have grown?

Was this a deliberate attempt to reduce my payout amount?

Ms Abbott, please understand my frustration, and also my anxiety about this very important outcome for me.

This process has been a long and complex issue, and it has taken a long time to get this far - personally right now I am in debt and this outcome could really change my life, my prosperity and quality of living, even a place to call home.

If the determination is different to what it was in a positive way for me my life and financial life would have evolved in an entirely different way.

It could also result in a just payment because at the moment I see this case has lots of inconsistencies and I think has been calculated wrong, or / and I have been treated unfairly.

After all, this is about large sums of money and I am just one little person with little idea of how this works and they are a massive company doing everything they can to preserve the amount of prosperity that may have been paid to me.

I am not surprised they have tried to not acknowledge me, ignore me, or indeed offer me \$30 to balance the books. They are hoping I will just go away, so I am so grateful for AFCA and for your professionalism, time and support.

Can you please acknowledge if you think I have got this issue focussed on correctly in light of what I have written above, and if indeed I should expect at least another 1 x unit of TPD payout (or relevant to the amount of insurance I actually paid), with compound interest added back until 2007?

My life would have panned out a lot differently if this issue was treated i think fairly when i made the initial claim.

As you know, I thought I had signed up to a higher level of insurance because I knew of the episodic nature of my illness, and you have the stat dec of that.

But because so much time has passed and i do not have any evidence of this, this statement is all i can go off, and I have not had the opportunity due to my episodic illness to take financial responsibility for my life and affairs before now.

Ms Abbott, I am tired and frustrated and so incredibly anxious for an outcome. If you could give me a ballpark figure of how much this may mean to me, or if I have got the above right, it would ease my worry so much.

Thank you so much for your time on this.

Sincerely and honestly,

Richard Mclean

